

Plaintiffs have failed to do.

Texaco has also shown that Plaintiffs do not have admissible expert testimony required to support their defect cause of action.

Accordingly, Defendant Texaco's motion for summary judgment is **granted**.

Evidentiary Issues

Objections to Evidence

Plaintiffs' Objections

Written objections to evidence must follow one of two formats as set forth in the California Rules of Court. (Cal. R. Ct. 3.1354(b)). The objections must be "numbered consecutively" and must (1) identify the name of the document where the specific material objected to is located, (2) state the exhibit, title, page, and line number of the material objected to, (3) quote or set forth the objectionable statement or material, and (4) state the ground for the objection. (*Ibid.*)

Plaintiffs do not number any of their objections, and while the first two documents they are objecting to are identified, the third objection is to a statement – but Plaintiffs do not identify the name of the document where that statement is located, or the exhibit, title, page and line number where it can be found. Without this information, the Court cannot understand the context of the statement or even who made it.

The party submitting the objections "must submit with the objections a proposed order." (*Ibid.*) The proposed order must include a place for the Court to indicating whether it has sustained or overruled each objection, and a place for the signature of the judge. (*Ibid.*) The proposed order must also be in one of two formats. (*Ibid.*) The failure to comply with the requirements of Rule 3.1354 is sufficient basis to overrule those objections. (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1118.)

Plaintiff's objections fail to comply with the above requirements and can consequently be overruled on that basis alone. The Court also finds each of Plaintiffs' objections to be without merit and overrules each accordingly.

Texaco's Objections

Objections 1-10: Sustained (Improper opinion *Jacobs v. Fire Ins. Exchange* (1995) 36 Cal.App.4th 1258, 1270.)

Objection 11: Sustained (Evid. Code § 1200.)

2. 9:00 AM CASE NUMBER: C23-00639
CASE NAME: 4740 APPIAN WAY HOMEOWNERS ASSOCIATION VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CHANG, HOUY CHYUN
TENTATIVE RULING:

Defendant Huoy Chyun Chang's Demurrer to Plaintiff 4740 Appian Way Homeowners Association's First Amended Complaint is **overruled**. Plaintiff shall prepare the order and file and serve notice of entry of the order. Defendant shall answer to the FAC within 15 days after service of notice of entry of the order.

I. Background

On March 22, 2023, Plaintiffs 4740 Appian Way Homeowners Association ("HOA") filed a lawsuit for Condemnation and Negligence against Defendant Contra Costa County ("the County") and Does 1 through 100 for water damage allegedly caused by backup from storm and sewage drains that were owned, managed, repaired, and/or maintained by the County. The water damage occurred on December 15, 2021. The HOA alleges that upon an investigation of the source of the intrusion in February 2022, it was determined that the storm drains were obstructed by concrete that was poured into them during sidewalk construction and repairs which were performed by the Contra Costa County Department of Public Works.

On January 2, 2024, Plaintiffs Michael and Cygridh Rooney, owners of Unit 11 of 4740 Appian Way, filed a separate complaint against Contra Costa County, Global Housing Alliance, LLC, and neighboring property owners Albert Cembura and Huoy Chyun Chang. The Rooney Plaintiffs allege causes of action for negligence and condemnation arising from the December 15, 2021 flood, and that the defendants in that case either intentionally or negligently diverted the floodwaters onto their property. Michael Rooney has stated in pleadings that that he filed a separate case because he thought the HOA had not named all responsible parties.

On October 2, 2024, the Court consolidated the HOA action and the Rooney action for all purposes, with the HOA action designated as the lead case. On August 11, 2025, the Court granted the HOA leave to amend its complaint to add additional claims and defendants, including Defendant Chang.

The HOA filed its First Amended Complaint ("FAC") on August 14, 2025, alleging causes of action for (1) inverse condemnation (County), (2) negligence (All Defendants), (3) negligence per se (Neighbor Defendants), (4) trespass (Neighbor Defendants), and (5) nuisance (Neighbor Defendants). The FAC alleges that the Neighbor Defendants made unpermitted modifications to the portions of Appian Creek running through their respective properties, failed to adequately maintain those portions of the creek, and filled in or otherwise obstructed the creek. These modifications allegedly constricted the flow of water, causing the creek to overflow and flood Appian Way and the Association Development. The FAC further alleges that discovery obtained through the consolidated Rooney lawsuit confirmed that the Neighbor Defendants have continued to modify their respective portions of Appian Creek in an unpermitted manner. (FAC ¶¶ 19, 20, 29, 30.)

Defendant Chang, identified in the FAC as one of the "Neighbor Defendants," demurs to the FAC. Chang argues that the FAC is time-barred, and otherwise fails to state facts sufficient to constitute a cause of action.

On timeliness, Chang argues that the claims against him are barred by the applicable statute of limitations because he was not added as a defendant until the FAC was filed in August 2025, more than three years after the December 15, 2021 flooding incident. Chang argues the relation-back doctrine does not apply because the HOA cannot show genuine ignorance of Chang's identity. Chang

points to statements attributed to Rooney expressing dissatisfaction with the HOA's decision not to include the neighboring property owners in the original action and notes that Rooney later filed a separate lawsuit against Chang and the other neighboring defendants on January 2, 2024. Chang argues this information shows the HOA knew or should have known of the Chang's identity earlier and thus it could not rely on Doe pleading or the relation back doctrine to add Chang after the statute of limitations expired.

Chang also argues the HOA's pleading is defective because the FAC impermissibly groups the Neighbor Defendants together and attributes alleged wrongdoing collectively, without identifying any specific act or omission by Chang that might support liability.

II. Meet and Confer

California Code of Civil Procedure section 430.41, subdivision (a) requires parties to "meet and confer" before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. § 430.41, subd. (a)(3).)

Defendant's counsel submits a declaration indicating the parties met and conferred by phone but were unable to resolve the issues. (Goncharova Decl. ¶ 12.) Accordingly, Defendant satisfied the meet and confer requirement.

III. Demurrer Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . ." (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

IV. Discussion

A. Statute of Limitations and Section 474 Relation-Back Arguments

The parties frame timeliness primarily through Code of Civil Procedure section 474 and the Doe-defendant relation-back doctrine. Chang argues that because Chang was not named as a defendant until the FAC was filed in August 2025, more than three years after the December 15, 2021 flood, the claims are barred unless the amendment relates back to the filing of the original complaint. However, Chang argues that relation back is unavailable because the HOA cannot demonstrate that it was genuinely ignorant of Chang's identity when the complaint was filed. The HOA responds that while it

may have known Chang's identity, it was genuinely ignorant of the facts giving rise to a cause of action against Chang at that time. Relying on *San Diego Navy Broadway Complex Coalition v. California Coastal Comm'n* (2019) 40 Cal.App.5th 563, the HOA argues that ignorance must extend not only to identity, but to a defendant's culpable conduct. The HOA claims it initially believed the County alone caused the flooding and did not discover facts supporting claims against Chang until further investigation revealed modifications to the creek. The HOA claims its amendment was timely once sufficient facts were discovered, and there is no prejudice because Chang was already named as a defendant in the Rooney action.

Under CCP section 474, where a complaint is amended after the statute of limitations has run to identify a fictitiously named defendant, the amended complaint will relate back to the date of the original filing only if (1) the original complaint stated a valid cause of action against the now-identified Doe defendant, (2) the plaintiff was genuinely ignorant of the defendant's identity at the time of filing, and (3) the amended complaint is based on the same general set of facts as the original. (*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600–601.)

Here, the FAC names Chang directly and does not identify Chang as a substituted Doe defendant, nor does the summons identify Chang as such. Although courts have treated noncompliance with the formal Doe substitution procedure as a potentially curable procedural defect rather than an automatic bar to invoking section 474 (*Woo v. Superior Court* (2000) 75 Cal.App.4th 169, 176–177), the Court cannot resolve the parties' section 474 dispute on demurrer. Even assuming section 474 could apply notwithstanding the manner in which Chang was added as a party, the issues of genuine ignorance, diligence, and prejudice are factual in nature and not amenable to resolution at the pleading stage. (See *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1066–1067 [challenge to Doe amendment requires an evidence-based showing of unreasonable delay and prejudice].)

Separately, a statute of limitations demurrer lies only where the time bar clearly and affirmatively appears on the face of the FAC or from matters subject to judicial notice. (*Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.) Because the section 474 issues are not amenable to resolution on demurrer, the Court next considers whether the FAC shows that the HOA's claims are time barred and finds that it does not.

As the HOA points out, application of the statute of limitations to the trespass and nuisance causes of action depends on whether the alleged condition is permanent or continuing. "The crucial test of the permanency of a trespass or nuisance is whether the trespass or nuisance can be discontinued or abated." (*Madani v. Rabinowitz* (2020) 45 Cal.App.5th 602, 608–609.) A trespass or nuisance is continuing if it "can be remedied at a reasonable cost by reasonable means." (*Id.* at p. 609.)

The HOA asserts in its opposition that the FAC alleges the Neighbor Defendants' intrusions can be abated by removing unpermitted modifications and properly maintaining the creek. (See Opp. p. 4:11–13.) The Court did not locate any such allegation in the FAC. However, the absence of a specific abatement allegation does not establish permanence as a matter of law. While the FAC alleges the creek portions "have not been maintained and upon information and belief have been filled in or otherwise obstructed" by the Neighbor Defendants (FAC ¶ 19), this does not establish that any such

obstruction is fixed, intended to be permanent, or incapable of abatement.

The HOA alleges that the Neighbor Defendants “have and continue to modify” portions of Appian Creek in an unpermitted manner, constricting water flow and causing overflow flooding to the HOA property. (FAC ¶ 20.) It further alleges that even after the County cleared the storm drains, the HOA “continued to be inundated with flood waters” during the winter of 2023 which required mitigation. (FAC ¶ 18.) Even if recurring flooding might not restart the limitations period were the alleged condition permanent, as noted, the FAC does not establish permanency as a matter of law.

B. Whether the FAC Otherwise States a Cause of Action Against Chang

Chang argues the FAC fails to state facts sufficient to constitute a cause of action because the allegations are pleaded collectively against the "Neighbor Defendants" and certain allegations are made "upon information and belief." In substance, Chang's objection is that the FAC does not describe Chang's individual conduct with sufficient detail, an argument sounding in uncertainty rather than failure to state a claim. Demurrers for uncertainty are disfavored and strictly construed, particularly where any lack of detail can be clarified through discovery. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

Here, the FAC alleges that the Neighbor Defendants failed to maintain, and upon information and belief, they filled in or otherwise obstructed, portions of the creek running through their respective properties, and that they made unpermitted modifications that constricted the flow of water and caused flooding downstream, including to the Association Development. (FAC ¶¶ 19, 30, 32–44.) These allegations, accepted as true, are sufficient to apprise Chang of the conduct alleged. And while it is better practice identify the information giving rise to allegations made on information and belief, the Court declines to require the HOA to amend on this ground. As the property owner, Chang is in a position to know what was or was not done to the creek, and the specific basis for the HOA's contention that Chang obstructed the creek in a manner that harmed the HOA may be obtained through discovery.

V. Conclusion

For the foregoing reasons, the demurrer is overruled. Plaintiff shall prepare the order and file and serve notice of entry of the order. Defendant shall answer to the FAC within 15 days after service of notice of entry of the order.

3. 9:00 AM CASE NUMBER: C23-01274

CASE NAME: NATASHA WINDOM VS. SKSS ENTERPRISES INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL FOR CLASS ACTION AND PAGA SETTLEMENT SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING: